

PROMISING RETURN PRACTICES

PRE-RETURN SWEDEN - II

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Name of practice	Dual non refoulement assessment and child-centred procedures	
Dates	(No Information)	
Target group	Future-return migrants / migrants with return decisions	
Geographic Scope	Country	Sweden
	Regions	Europe
	Sub Region	North Europe, Scandinavia
Actor	Swedish Migration Agency Migration Courts and the Migration Court of Appeal Police Authority	
Return Stages	Pre-Return	
Challenge addressed	Identification, Detention, and Case Management	
Principles referred (implicit or explicit)	Non-refoulment Vulnerability & Child-centred perspective Human-rights–based approach	

SUMMARY

1) Dual assessment of non-refoulement: Sweden operates a dual assessment of the nonrefoulement principle: first during the asylum procedure, where the Migration Agency and, on appeal, the Migration Courts examine risks of persecution or serious harm under the Aliens Act and the Refugee/Qualification Directive, and again after a return decision through enforcement stage control of “impediments to enforcement” under Chapter 12 of the Aliens Act (especially Sections 1–3a and 18– 19), where new or newly invoked circumstances can trigger a residence permit or reexamination before removal is carried out (AIDA Sweden Country Report, 2025). This twostep structure offers stronger safeguards than in many EU Member States, which typically conduct only a single, pre-decision assessment. Although it can create some procedural duplication, it reinforces protection against breaches of Article 3 ECHR, as illustrated by numerous second stage decisions suspending or altering removals. In 2024, 517 decisions were taken under Chapter 12 Section 18 on impediments to enforcement, of which 491 resulted in residence permits, mostly on “other special grounds” or changed circumstances rather than classic asylum grounds (AIDA Sweden Country Report, 2025, p. 60).

2) Best interests of the child (BIC) and unaccompanied minors (UAM): The Swedish Migration Agency has a central responsibility to ensure that the best interests of the child (BIC) are a primary consideration throughout the asylum and return process, in coordination with legal guardians, Migration Courts, and municipal child protection authorities. For UAMs who cannot be returned in practice or who have strong humanitarian grounds, Sweden may grant temporary residence permits, which can be renewed and, in some cases, provide protection and relative stability up to the age of 18; however, such permits are subject to individual assessment, increasingly restrictive rules, and do not constitute an automatic right.

BENEFITS/IMPACTS AND SHORTCOMINGS

Dual assessments of nonrefoulement function as an additional safety net, with hundreds of impediments to enforcement decisions each year that can halt removals or lead to residence permits when new risks or circumstances arise.

In principle, systematic consideration of the BIC, together with the possibility of temporary, renewable permits for nonreturnable UAMs, can provide child specific protection, continuity, and some stability during crucial developmental periods, even when return remains the long-term policy goal.

However, these practices have notable shortcomings. The strict “new circumstances” requirement for subsequent applications and impediments to enforcement claims can limit protection in practice, as late emerging or poorly documented risks may be filtered out despite their seriousness. Internal and external reviews also point to persistent gaps in identifying and weighing children’s interests and asylum grounds, indicating that BIC obligations are sometimes treated as formalities rather than truly guiding decisions. This raises concerns that the potential of both the dual nonrefoulement system and the child centred framework is not fully realised in day-to-day practice.

KEY LESSONS

Dual stage protection screening can significantly strengthen compliance with non-refoulement, especially when safeguards extend beyond the initial asylum decision and remain available up to the point of removal. Sweden’s impediments to enforcement procedure shows how a second review can, in practice, prevent removals where new risks or country of origin changes emerge.

Specialised child protection assessments require external checks. Concentrating BIC determinations in migration authorities can improve internal consistency but needs complementary oversight to address blind spots and structural biases. Swedish case law reviews, ombudsman reports, and research repeatedly highlight weaknesses in how children’s interests are documented, analysed, and balanced, underscoring the role of courts, ombuds institutions, and NGOs in reinforcing child rights-compliant decision-making.

RECOMMENDATIONS

Consolidate and generalise post-decision protection safeguards. States should establish clear impediments to enforcement procedures with automatic suspensive effect, so that removal is halted whenever new protection-relevant elements arise, ensuring full, up to date consideration of nonrefoulement risks before enforcement.

Institutionalise a genuinely child-centred, rights-based approach. This requires detailed BIC guidelines, trained child specialist caseworkers, early and routine involvement of child protection services, and guarantees that children’s own protection grounds are examined independently from adult family members’ cases, with decisions clearly documenting how BIC considerations shaped the outcome.

REFERENCES

AIDA Sweden Country Report, 2025. https://asylumineurope.org/wp-content/uploads/2025/05/AIDA-SE_2024Update.pdf

AIDA/ECRE. (n.d.). National protection statuses and return procedure. Asylum Information Database. <https://asylumineurope.org/reports/country/sweden/asylum-procedure/procedures/national-protection-statuses-and-return-procedure/>

AIDA/ECRE. (n.d.). Special procedural guarantees. Asylum Information Database. <https://asylumineurope.org/reports/country/sweden/asylum-procedure/guarantees-vulnerable-groups/special-procedural-guarantees/>

AIDA/ECRE. (n.d.). Subsequent applications. Asylum Information Database. <https://asylumineurope.org/reports/country/sweden/asylum-procedure/subsequent-applications/>

Government Offices of Sweden. (2005). Aliens Act (2005:716) and related national provisions on detention, supervision, and impediments to enforcement.

Strömsund Municipality. (2020). The child’s best interest during the return process. <https://begripligt.nu/The%20Child%E2%80%99s%20Best%20Interest%20during%20the%20Return%20Process.pdf>